

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Isabel Cifarelli	Team: Squad #13	CCRB Case #: 202005047	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 07/16/2020 5:45 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 5/4/2022	Precinct: 120		
Date/Time CV Reported Thu, 07/16/2020 8:29 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Thu, 07/16/2020 8:29 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. Officers			
2. DT3 Carlos Corporan	3305	948813	WARRSEC
3. DT3 Edgardo Diaz	3306	948883	WARRSEC
4. DT3 Genaro Barreiro	00308	950050	WARRSEC
5. An officer			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Mark Brinadze	00850	948309	WARRSEC
2. DT3 Sherrod Stuart	05539	952271	WARRSEC

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Carlos Corporan	Abuse: Detective Carlos Corporan entered § 87(2)(b) in Staten Island.	A . Unsubstantiated
B . DT3 Edgardo Diaz	Abuse: Detective Edgardo Diaz entered § 87(2)(b) in Staten Island.	B . Unsubstantiated
C . DT3 Genaro Barreiro	Abuse: Detective Genaro Barreiro entered § 87(2)(b) in Staten Island.	C . Unsubstantiated
D . DT3 Carlos Corporan	Force: Detective Carlos Corporan pointed his gun at § 87(2)(b)	D . Unsubstantiated
E . DT3 Edgardo Diaz	Force: Detective Edgardo Diaz pointed his gun at § 87(2)(b)	E . Unsubstantiated
F . DT3 Carlos Corporan	Abuse: Detective Carlos Corporan searched § 87(2)(b) in Staten Island.	F . Unsubstantiated
G . DT3 Edgardo Diaz	Abuse: Detective Edgardo Diaz searched § 87(2)(b) in Staten Island.	G . Unsubstantiated
H . DT3 Genaro Barreiro	Abuse: Detective Genaro Barreiro searched § 87(2)(b) in Staten Island.	H . Unsubstantiated
I . DT3 Carlos Corporan	Abuse: Detective Carlos Corporan refused to provide his name to § 87(2)(b)	I . Unsubstantiated
J . An officer	Abuse: An officer refused to provide his name to § 87(2)(b)	J . Officer(s) Unidentified
K . An officer	Abuse: An officer refused to provide his shield number to § 87(2)(b)	K . Officer(s) Unidentified

Officer(s)	Allegation	Investigator Recommendation
L . DT3 Carlos Corporan	Abuse: Detective Carlos Corporan failed to provide § 87(2)(b) with a business card.	L . Unsubstantiated
M . DT3 Edgardo Diaz	Abuse: Detective Edgardo Diaz failed to provide § 87(2)(b) with a business card.	M . Unsubstantiated
N . DT3 Genaro Barreiro	Abuse: Detective Genaro Barreiro failed to provide § 87(2)(b) with a business card.	N . Unsubstantiated
O . DT3 Carlos Corporan	Abuse: Detective Carlos Corporan entered § 87(2)(b) in Staten Island.	O . Unsubstantiated
P . Officers	Abuse: Officers entered § 87(2)(b) in Staten Island.	P . Officer(s) Unidentified
Q . DT3 Carlos Corporan	Abuse: Detective Carlos Corporan searched § 87(2)(b) in Staten Island.	Q . Unsubstantiated
R . Officers	Abuse: Officers searched § 87(2)(b) in Staten Island.	R . Officer(s) Unidentified

Case Summary

On July 16, 2020, § 87(2)§ 87(2)(b) filed this complaint with the CCRB both via the call processing system and the agency's website.

On July 16, 2020, § 87(2)(b) was asleep in his apartment at § 87(2)(b) in Staten Island, when Detective Carlos Corporan, Detective Edgardo Diaz, and Detective Genaro Barreiro, all of Staten Island Warrants Squad, entered his apartment using a key (**Allegations A, B, and C: Abuse of Authority,** § 87(2)(g) Det. Diaz and Det. Corporan allegedly pointed their guns at § 87(2)(b)'s head (**Allegations D and E: Force,** § 87(2)(g) All three officers performed a protective sweep of the apartment (**Allegations F, G, and H: Abuse of Authority,** § 87(2)(g) and asked § 87(2)(b) about the whereabouts of two individuals they were looking for, § 87(2)(b) and § 87(2)(b) § 87(2)(b) asked Det. Corporan for his name and another officer for their name and shield number, which both officers allegedly did not provide (**Allegation I: Abuse of Authority,** § 87(2)(g) **Allegations J and K: Abuse of Authority,** § 87(2)(g) The officers then left the apartment, allegedly without providing business cards to § 87(2)(b) (**Allegations L, M, and N: Abuse of Authority,** § 87(2)(g) Det. Corporan, accompanied by other officers, allegedly returned to § 87(2)(b)'s apartment at approximately 12:00p.m., entered, and performed an additional protective sweep (**Allegations O and Q: Abuse of Authority,** § 87(2)(g) **Allegations P and R: Abuse of Authority,** § 87(2)(g)

§ 87(2)(b) was not arrested or summonsed as a result of this incident. § 87(2)(b) and § 87(2)(b) were ultimately apprehended elsewhere on the incident date. § 87(2)(b) was charged § 87(2)(a) 160.50

§ 87(2)(b) was charged § 87(2)(a) 160.50
§ 87(2)(g)

The investigation received 20 body-worn camera ("BWC") videos from the 120th Precinct, however, none of them capture any interactions at § 87(2)(b)'s apartment. The Warrant Squad was not equipped with BWC at the time of the incident. No security footage was available to the investigation (**BR 03-04**).

Findings and Recommendations

Allegation (A) Abuse of Authority: Detective Carlos Corporan entered § 87(2)(b) in Staten Island.

Allegation (B) Abuse of Authority: Detective Edgardo Diaz entered § 87(2)(b) in Staten Island.

Allegation (C) Abuse of Authority: Detective Genaro Barreiro entered § 87(2)(b) in Staten Island.

Allegation (D) Force: Detective Carlos Corporan pointed his gun at § 87(2)(b)

Allegation (E) Force: Detective Edgardo Diaz pointed his gun at § 87(2)(b)

Allegation (F) Abuse of Authority: Detective Carlos Corporan searched § 87(2)(b) in Staten Island.

Allegation (G) Abuse of Authority: Detective Edgardo Diaz searched § 87(2)(b) in Staten Island.

Allegation (H) Abuse of Authority: Detective Genaro Barreiro searched § 87(2)(b) in Staten Island.

§ 87(2)(b) testified that at approximately 5:45am, he was sleeping on an air mattress on the floor of his bedroom (**BR 05-06**). At the time, he was the only person living in the apartment. § 87(2)(b) had lived continuously in this apartment since he was born in 1995. The apartment has four bedrooms and § 87(2)(b)'s mother, his brother, and his brother's daughter previously lived in the apartment, but they all moved out a few months prior to the incident. § 87(2)(b) continued to live in the apartment while he waited for NYCHA to move him to a one-bedroom apartment. The

other three bedrooms were empty and did not contain any furniture or personal items. All four bedroom doors were closed. § 87(2)(b) was still asleep when five to six officers, including Det. Corporan and Det. Diaz, entered his bedroom, apparently by forcing the door open since it had been closed and locked previously. There were approximately six additional officers standing outside § 87(2)(b)'s bedroom door. § 87(2)(b) did not recall whether the officers said anything when they entered. Approximately two officers held shields and three held flashlights that they pointed toward § 87(2)(b). Det. Corporan and Det. Diaz had their guns pointed at § 87(2)(b)'s face, about an arm's length away. Because there were flashlights pointed at his face, § 87(2)(b) was unable to see what most of the officers looked like. Det. Corporan handcuffed § 87(2)(b) the officers holstered their guns, and several officers began looking around inside the apartment; one of them opened a closet and briefly looked inside. § 87(2)(b) could see other officers walking throughout the house, apparently briefly checking the other rooms. The officers did not search § 87(2)(b)'s personal items, they only appeared to search places in which a person could hide.

§ 87(2)(b) stated that after a few minutes, he left his bedroom and observed that all four of the lower kitchen cabinets had been opened, so he believed those had been searched as well. He did not observe the officers search anything other than the closets or cabinets and did not see anything that indicated that anything other than closets and cabinets had been searched. The officers were in § 87(2)(b)'s apartment for approximately five to seven minutes. Just before they left, they showed § 87(2)(b) pictures of the two individuals that they were looking for, § 87(2)(b) and § 87(2)(b). § 87(2)(b) knew who those individuals were, but he did not speak to them anymore and they had never been inside his apartment. An officer asked § 87(2)(b) where the two individuals were, and he told them that he did not know and that they had never been inside his apartment. An officer removed § 87(2)(b)'s handcuffs. Another officer told § 87(2)(b) that the officers entered his apartment using a key provided to them by building management. § 87(2)(b) later asked the building's housing manager, § 87(2)(b), § 87(2)(b) about this, and he said he did not know what § 87(2)(b) was talking about, and that he would not let the police into the apartment if they § 87(2)(b).

§ 87(2)(b) was contacted by the investigation, but he did not recall this incident (**BR 07**). He was unaware of anyone providing an apartment key to officers in July of 2020, and he was unaware of any policy that would allow them to do so or any NYCHA documentation of this that may exist.

Det. Corporan testified that at some point in July of 2020, he received two active warrants for § 87(2)(b) and § 87(2)(b) (**BR 08-09**). He initially testified that these were parole warrants, but he later said he could not recall which brother had which type of warrant, and believed that one of them may have had an active parole warrant while the other had an active I-CARD. On July 15, 2020, one day prior to this incident, Det. Corporan canvassed the area around the Stapleton Houses to see if anyone had seen § 87(2)(b). During this canvass, Det. Corporan came across a NYCHA maintenance employee, he did not recall when or where. The maintenance employee said he saw § 87(2)(b) go into § 87(2)(b) numerous times and that the apartment was supposed to be vacant. Det. Corporan did not recall if the maintenance employee said whether anyone was living there, only that it should be vacant. The maintenance employee did not tell Det. Corporan anything about the lease or the individuals that had been living in that apartment. The maintenance employee did not say how long § 87(2)(b) stayed at the apartment or how he was able to enter. Det. Corporan did not recall the name or description of the maintenance employee.

Det. Corporan said he then went to the apartment housing office to confirm that the apartment was vacant. He did not recall who he spoke to at the housing office, if it was more than one person, or the specific details of this conversation. He did not recall what they told him, only that he asked for a key to the apartment because he had a warrant for § 87(2)(b) and he had been told § 87(2)(b) was there and that the apartment was supposed to be vacant. Det. Corporan's understanding was that the housing office employees provided him a key because it was vacant, though he did not recall whether they stated this specifically. When asked if he asked the

employees at the housing office whether the apartment was vacant, Det. Corporan testified that he already knew it was vacant, based on his conversation with the maintenance employee. He did not recall if the employees in the housing office told him anything about any expired leases for the apartment, the individuals that had been living in that apartment, whether anyone in the housing office confirmed that the apartment was vacant, or whether they mentioned anything about anyone being in the apartment illegally. He did not see the housing office employees check any documentation or check on a computer to see if the apartment was vacant. The housing office employees told Det. Corporan that “nobody’s supposed to be in there” in response to Det. Corporan telling them that he had reason to believe § 87(2)(b) or § 87(2)(b) was in the apartment. They did not indicate whether they thought anyone was in the apartment. Det. Corporan did not recall the names or descriptions of any of the housing office employee (s).

Det. Corporan testified that later that night, he heard that § 87(2)(b) shot a gun at someone on the corner of § 87(2)(b) in Staten Island. Det. Corporan reviewed the video of the shooting and saw § 87(2)(b) run into an apartment at the § 87(2)(b). The following morning, on July 16, 2020, Det. Corporan went to § 87(2)(b) § 87(2)(b) accompanied by Det. Diaz and Det. Barreiro. Det. Corporan did not remember who else was with them or how many additional officers were there. Det. Corporan announced, “NYPD” for his safety before entering the apartment. He did not hear an answer from inside. There was no evidence of anyone inside the apartment from the outside. Det. Corporan waited 30 seconds before he entered the apartment. He was the first to enter and continued to say “NYPD.” When the officers walked in, the lights in the apartment were off. He and the other two detectives walked around the with flashlights, and their guns drawn and pointed in front of them. When they first entered the apartment, Det. Corporan saw a living room with a hallway that led to another hallway. He did not remember where the kitchen was. In order to clear the apartment, the detectives needed to look through the entire apartment and into any space where a person could hide. The entire apartment was completely unfurnished and had nothing inside. The detectives checked the living room first then looked through the bedrooms. Det. Corporan did not remember if he looked inside any closets. While the detectives were looking around the apartment, they went into the first bedroom to the left of the first hallway. The door to the bedroom was open. Through the door, Det. Corporan saw § 87(2)(b) sitting on the floor with a blanket, nothing else was in the room. The detectives were in the apartment for approximately five seconds before Det. Corporan saw § 87(2)(b).

Det. Corporan said he walked into the bedroom with his gun still drawn and pointed in front of him. He did not know if his gun was ever pointed directly at § 87(2)(b) or his head. Det. Corporan stood approximately two feet from § 87(2)(b) and ordered him to show his hands. When § 87(2)(b) showed his hands, Det. Corporan holstered his gun. He did not know how long his gun was pointed. Det. Corporan immediately knew from his appearance that § 87(2)(b) was not § 87(2)(b). Det. Corporan never placed § 87(2)(b) in handcuffs and was not sure if anyone else did. § 87(2)(b) told the detectives that he knew he was not supposed to be in the apartment and that he used to live there. He seemed nervous. Det. Corporan asked § 87(2)(b) if he knew § 87(2)(b). § 87(2)(b) said he did and that he sometimes allowed him to stay in the apartment. He also told the detectives that § 87(2)(b) was not in the apartment at that moment. Det. Corporan asked § 87(2)(b) if he had any more information about § 87(2)(b) or § 87(2)(b).

§ 87(2)(b) § 87(2)(e), § 87(2)(f)

§ 87(2)(b) never expressed he was upset with the detectives’ entry.

Det. Diaz testified that prior to July 16, 2020, § 87(2)(b) had an I-CARD for § 87(2)(a) 160.50 and § 87(2)(b) had an I-CARD § 87(2)(a) 160.50. One of them, Det. Diaz did not remember who, also had a parole warrant. At approximately 5:00 a.m. on July 16, 2020, Det. Diaz, Det. Corporan, and possibly other officers whom Det. Diaz did not remember, went to § 87(2)(b) in Staten Island, with the intention of apprehending § 87(2)(b) and § 87(2)(b). The officers went to many apartments at § 87(2)(b) (b) and talked to many people, though he did not specifically recall where or whom. At some point,

possibly the previous day, Det. Corporan had obtained the key to § 87(2)(b) as part of his investigation. Det. Diaz did not know the circumstances surrounding the obtaining of the key. At approximately 5:45 a.m., the officers knocked on the door of § 87(2)(b) and identified themselves as the police. There was no answer or any indication that someone was inside. The officers entered § 87(2)(b) shortly after knocking. Det. Diaz was the first to enter, though he did not remember who unlocked the door. He entered possibly holding a shield and with his gun drawn because of reports that the perpetrators may be armed. His gun was pointed toward “center mass,” held in front of his face. Det. Diaz did not recall if other officers had shields and did not know if other officers had their weapons drawn, as they were behind him. When he entered, he observed § 87(2)(b) on the floor of the apartment covered by a blanket. He ordered § 87(2)(b) to show his hands, and he stood up and did so. Det. Diaz saw that § 87(2)(b) was not armed and that he was not § 87(2)(b) or § 87(2)(b) and immediately holstered his gun. He did not point his gun at § 87(2)(b) or his head and did not observe another officer do so. Det. Diaz walked throughout the apartment to clear it, making sure there were no other people or firearms in plain view. He looked inside every bedroom, the kitchen, and the bathroom. He went into every space that was large enough for a person to hide inside, including closets and kitchen cabinets for safety purposes, to make sure there was no one hiding there. Initially, § 87(2)(b) was upset that the officers were inside the apartment, but he became cooperative when he learned they were from the warrant squad. § 87(2)(b) did not complain about officers being in the apartment and thanked them for allowing him to stay there rather than arresting him.

Det. Barreiro did not independently recall this incident, and he did not recall whether he entered or searched the apartment (**BR 11**).

I-CARD # § 87(2)(b) § 87(2)(a) 160.50 was issued for § 87(2)(b) on § 87(2)(b) (**BR 12**). The address listed is § 87(2)(b) in Staten Island. I-CARD # § 87(2)(b) § 87(2)(a) 160.50 was issued for § 87(2)(b) on July 15, 2020 (**BR 13**). The address listed is § 87(2)(b) in Staten Island. Both § 87(2)(b) and § 87(2)(b) were listed on their respective I-CARDS as perpetrators, and they both note that officers had probable cause to arrest. The investigation did not locate any evidence of a parole warrant for either § 87(2)(b) or § 87(2)(b) (**BR 14-15**).

In DD5 # § 87(2)(b) Det. Corporan wrote the following: “On July 16, 2020, at approximately 0600 hours, I/o visited § 87(2)(b) SI NY in an attempt to locate and apprehend subject. I/o was met with § 87(2)(b) § 87(2)(b) who was the sole person in the apartment. § 87(2)(e), § 87(2)(f)

§ 87(2)(g) (**BR 23**). Det. Corporan’s DD5s regarding this investigation do not list any information about parole warrants for either § 87(2)(b) brother and they do not document any conversations with maintenance employees or other staff on or before July 16, 2020 (**BR 23-36**).

Tenants maintain a reasonable expectation of privacy in their home up until the moment of eviction, per People v. Davis, 570 N.Y.S.2d 661 (App. Div. 2nd Dept. 1991) (**BR 16**). A landlord’s agent has the authority to admit police into areas which are reserved to and under the control of the landlord, per People v. Ernest E., 330 N.Y.S.2d 3 (App. Div. 2nd Dept. 1972) (**BR 17**). A protective sweep is defined as a “quick and limited search of premises conducted to protect the safety of police officers or others. It is narrowly confined to a cursory visual inspection of those places in which a person might be hiding.” People v. Harris, 141 A.D. 3d 1024 (2016), (**BR 18**). Officers may perform protective sweeps when there are articulable facts present which, in combination with rational inferences from the facts, would lead a reasonably prudent officer to believe that the area to be swept harbors an individual posing a danger to those on scene.

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations A, B, and C** be closed as **unsubstantiated**.

§ 87(2)(g)

It is therefore recommended that **Allegations D and E** be closed as **unsubstantiated**.

It is undisputed that once the officers entered the apartment, they checked the bedrooms and closets of the apartment for additional people, limiting their search to brief visual inspections of the bedrooms, § 87(2)(g)

It is therefore recommended that **Allegations F, G, and H** be closed as **unsubstantiated**.

Allegation (I) Abuse of Authority: Detective Carlos Corporan refused to provide his name to

§ 87(2)(b)

Allegation (J) Abuse of Authority: An officer refused to provide his name to § 87(2)(b)

Allegation (K) Abuse of Authority: An officer refused to provide his shield number to § 87(2)(b)

Allegation (L) Abuse of Authority: Detective Carlos Corporan failed to provide § 87(2)(b)

with a business card.

Allegation (M) Abuse of Authority: Detective Edgardo Diaz failed to provide § 87(2)(b)

with a business card.

Allegation (N) Abuse of Authority: Detective Genaro Barreiro failed to provide § 87(2)(b)

with a business card.

§ 87(2)(b) testified that he asked Det. Corporan for his name two or three times. Each time, Det. Corporan pointed at his shield, but § 87(2)(b) could not tell what it said. Det. Corporan did not provide his name verbally. He then asked another officer, a white man who was 45-50 years old with a “husky” build, for his name and shield number, and the officer did not respond. After showing him the images of § 87(2)(b) and § 87(2)(b) the officers told § 87(2)(b) to let them know if he saw them. The officers did not provide their names or business cards to § 87(2)(b) so he had no way of contacting them. They then left § 87(2)(b)'s apartment.

Det. Corporan testified that while exiting the apartment, he gave § 87(2)(b) his business card with his name, shield number, command, and phone number § 87(2)(e), § 87(2)(f)

Det. Corporan thanked § 87(2)(b) and left. Det. Corporan did not recall if § 87(2)(b) asked him or

Det. Diaz for their names and shield numbers. Det. Corporan did not know if any officer gave § 87(2)(b) his business card.

§ 87(2)(g) . He stated that he and Det. Corporan both proactively provided their names and shield numbers to § 87(2)(b) verbally, and § 87(2)(b) did not ask for any officer's information. Det. Diaz did not know if he or any other officer provided § 87(2)(b) with their business card. Det. Barreiro did not recall if he or the other officers offered business cards to § 87(2)(b)

§ 87(2)(g)

Det. Corporan testified that Detective Sherrod Stuart of Bronx Warrants Squad may have been present during this incident; however, Det. Stuart is a Black man § 87(2)(b) § 87(2)(g)

Det. Corporan's DD5s regarding this investigation do not list any other officers involved in home visits on July 16, 2020 (**BR 23-36**). No other police documents obtained by the investigation document this visit to § 87(2)(b)'s apartment.

§ 87(2)(g)

It is therefore recommended that **Allegation I, L, M, and N** be closed as **unsubstantiated**, and that **Allegations J and K**, which have been pled to "An officer," be closed as **officer(s) unidentified**.

Allegation (O) Abuse of Authority: Detective Carlos Corporan entered § 87(2)(b) in Staten Island.

Allegation (P) Abuse of Authority: Officers entered § 87(2)(b) in Staten Island.

Allegation (Q) Abuse of Authority: Detective Carlos Corporan searched § 87(2)(b) in Staten Island.

Allegation (R) Abuse of Authority: Officers searched § 87(2)(b) in Staten Island.

§ 87(2)(b) testified that at approximately 12:00p.m., he was standing in front of his building with several neighbors. At this point, several other units of officers had arrived and were continuing to look for § 87(2)(b) and § 87(2)(b) within § 87(2)(b). There is a large terrace on the exterior of each floor of § 87(2)(b) through which the front doors of the apartments are accessed. There are no internal hallways in the building; all foot traffic goes through these terraces. § 87(2)(b) and his neighbors were watching the officers as they visited several floors of the building. The officers placed one of the brothers in handcuffs outside an apartment, possibly § 87(2)(b). They brought him out of the building and placed him into a police vehicle. Approximately five minutes later, once the officers had that brother in custody, six of the officers that came to § 87(2)(b)'s apartment earlier that morning, including Det. Corporan, returned to § 87(2)(b)'s apartment to check it. § 87(2)(b) saw that the officers were headed toward his apartment, so he went upstairs to meet them. The officers were knocking on the door and it appeared that they wanted to go in. Once § 87(2)(b) reached the § 87(2)(b) floor, he observed the officers kicking the door, and it looked like one of them was taking out a baton. § 87(2)(b) approached the officers, opened the door, and allowed them inside because of the officers' aggressive behavior at the door and because one of the officers said they wanted to check his apartment again for the other § 87(2)(b) brother. They were there for a very short amount of time, during which they walked into each room, then walked out and left. The doors to each bedroom had previously been closed and the officers opened them to check the rooms.

§ 87(2)(e), § 87(2)(f)

Det. Corporan then returned to § 87(2)(b) § 87(2)(b) and knocked on the door to speak to § 87(2)(b) and gather information. § 87(2)(b) opened the door. Det. Corporan spoke to § 87(2)(b) at the door and did not enter the apartment. § 87(2)(b) told Det. Corporan a list of apartments where § 87(2)(b) and § 87(2)(b) might have been, including § 87(2)(b) in the same building. Det. Corporan then left to investigate other leads involving other individuals. He did not recall whether any officers came with him to § 87(2)(b)'s apartment the second time, and he did not remember if any officers entered or searched the apartment again.

Det. Diaz testified that he did not return to § 87(2)(b) that day and that he was not aware of other officers doing so. He and other officers continued investigating throughout § 87(2)(b) knocking on doors and visiting other apartments based on information provided to them from § 87(2)(b). Det. Diaz texted back and forth with § 87(2)(b) and ultimately arrested both § 87(2)(b) and § 87(2)(b) as a result of § 87(2)(b)'s information.

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations O and Q** be closed as **unsubstantiated**.

§ 87(2)(g)

Allegations P and R have therefore been pled to “Officers,” and it is recommended that they be closed as **officer(s) unidentified**.

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to three other CCRB complaints and has been named as a victim in 11 other allegations (**BR 37**):
 - § 87(2)(b)
 -
- Det. Corporan has been a member of service for 11 years and has been a subject in seven other CCRB complaints and 22 other allegations, of which two were substantiated:
 - Case # 201710171 involved substantiated allegations of an entry and search of premises against Det. Corporan. The Board recommended Formalized Training and the NYPD imposed Formalized Training.
 - § 87(2)(g)
- Det. Diaz has been a member of service for 11 years and has been a subject in 10 other CCRB complaints and 27 other allegations, none of which were substantiated. § 87(2)(g)
- Det. Barreiro has been a member of service for 10 years and has been a subject in 18 other cases and 39 other allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- On March 22, 2022, a request for any record of a Notice of Claim being filed regarding this incident was sent to the New York City Office of the Comptroller. The response will be

added to the case file upon receipt.

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Squad: 13

Investigator:	<u>Isabel Cifarelli</u>	<u>Inv. Isabel Cifarelli</u>	<u>03/30/2022</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Laura Kastner</u>	<u>IM Laura Kastner</u>	<u>03/30/2022</u>
	Signature	Print Title & Name	Date